# 5 Other Development Provisions

This section provides general and specific requirements for development other than that dealt with in Part 3 (Centres and corridors) and Part 4 (Residential areas).

The provisions of 3.2.14 Visual and Acoustic Privacy P3 to P7 are to apply to residential flat buildings, shop top housing, child care centres, boarding houses, co living housing, backpackers' accommodation and serviced apartments.

## 5.1 Subdivision of Land

The BLEP 2012 sets development standards for minimum subdivision lot sizes in Clause 4.1 and the Lot Size Map.

In calculating lot size, the access handle for hatchet-shaped allotments is excluded.

The following controls apply in the R1, R2 and R3 Residential zones:

- All lots must have frontage to a street frontage to a lane alone is not accepted.
- The minimum width of a lot at the street frontage is 12m, or in the case of a hatchet-shaped lot, the minimum width of the main body of a lot (excluding the access handle) is 12m.
- The access handle of hatchet-shaped lots must have a minimum width of 2.5m.
- Lots should generally be regular in shape (i.e. rectangular). Boundaries that kink or dogleg around structures, or result in impractical spaces, shall be avoided.

**Advisory Note:**
There are additional provisions for the subdivision of land if it pertains to a heritage item or a property within a heritage conservation area (Refer to Section 4.7). Subdivision of a heritage property is generally not supported.

## 5.2 Health Consulting Rooms

Health consulting rooms are permitted with consent in all residential and business zones under the Burwood Local Environmental Plan (BLEP) 2012. The BLEP defines health consulting rooms as "*premises comprising one or more rooms within (or within the curtilage of) a dwelling house used by not more than three health care professionals at any one time".*

The following control applies:

The portion of a dwelling house used as a health consulting room must not exceed 50% of the floor area.

## 5.3 Child Care Centres

### 5.3.1 Introduction

This BDCP section provides guidance for development of child care centres by the establishment of additional provisions required by Council. This section applied to child care activities that are covered by the definitions of a centre-based child care facility, school-based child care, and home-based child care under the BLEP 2012.

### 5.3.2 Aims

The overall aims are:

- To promote excellence and best practice in the design and operation of child care centres.
- To promote the establishment of child care centres that meet the needs of the community.
- To ensure that proposals for new or enlarged child care centres respond positively to their context and setting, have minimal environmental impact are compatible with neighbouring land uses and integrate into existing residential environments.
- To provide child care centres that will support the effective implementation of an early childhood teaching program and assist staff in providing essential support, supervision, care and education of young children.
- To encourage the development of child care centres that maximise the health, safety and well-being of children and staff in child care centres.

### 5.3.3 Relationship with other Legislation, Plans and Policies

This Section should be read in conjunction with other relevant legislation, plans or policies including:

**State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017**

Establishes consistent State-wide assessment requirements and design considerations for educational establishments and early education and care facilities to improve the quality of infrastructure delivered and to minimise impacts on surrounding areas. Includes development standards for child care centres that may be eligible to be considered exempt or complying development. See the **Guide to the State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017** for further instruction.

**Child Care Planning Guideline 2017 – Delivering quality child care for NSW**

This document is referred to as the *Child Care Planning Guideline 2017* in this DCP Section. It aligns NSW planning controls with the National Quality Framework for early education and care.

**Building Code of Australia (BCA)**

BCA compliance is necessary in order to be granted a CC. The BCA specifies the relevant standards which apply to centre based children's services. There are technical requirements relating to structural considerations, fire resistance, access and egress, services and equipment, health and amenity.

**Food Act 2003 (incorporating food safety standards)**

Where child care centres conduct food preparation on their premises, the activity is subject to the provisions of the NSW Food Act. This legislation adopts national food safety standards which apply to all food businesses and places requirements on the operator to ensure the facilities provide for the safe preparation of food.

**The Road Hierarchy Plan**.

A copy of the current version is included in the appendices section of this DCP (refer to Section 8.4). Applicants should confirm with Council that the version in the appendix is up to date prior to lodging any DA.

**Any relevant Australian Standards** (AS), particularly:
AS/NZS 1428.4:2009: Design for access and mobility
AS/NZS 2890.1:2004/Amendment 1:2005: Parking facilities
AS/NZS 4422:1996: Playgrounds surfacing – Specifications, requirements and test method and
AS/NZS 4486.1:1997: Playgrounds and playground equipment – Development, installation, inspection, maintenance and operation.

### 5.3.4 Child Care Centre Approval Process

**Making an Application**

Child care centres require both development consent from Council, and a licence from the applicable State Government agency under the Care and Protection Act. It is essential that applicants liaise both with this agency and Council early in the planning process.

The steps in obtaining approval are as follows:

- Consultation with Council to determine requirements and community needs before selecting and purchasing a site or preparing plans.
- Applicants to consult with the applicable State Government agency to determine licensing requirements before selecting a site or preparing plans. At all times, the applicant is to refer to the specific controls and requirements of the Care and Protection Act and Regulation.
- Site selection, site analysis and plan preparation. Consider pre-lodgement meeting with Council prior to submitting DA.
- Submit a Development Application to Council, including the requirements identified in Section 5.3.6 – 5.3.7.

**State Government Licensing Requirements**

Every applicant must consult the applicable State Government agency and obtain the most recent publications for the establishment of a child care centre.

### 5.3.5 Development Controls

DAs for child care centres must address the considerations and regulations within Part 2, 3 and 4 of the Child Care Planning Guideline, as well as the development provisions below. If a DA fails to comply with one or more of the requirements of this DCP or the Child Care Planning Guideline, the applicant should detail how the objectives have otherwise been met. Appropriate responses to each part of the Child Care Planning Guideline shall be provided within a Statement of Environmental Effects for any DA for a child care centre.

## Site Selection and Location

### Objectives

**O1** To ensure that child care centres are located on sites:

- Where the facility is compatible with neighbouring land uses.
- The amenity of neighbours is maintained.
- Which are accessible by public and private transport.

**O2** To provide a safe and healthy environment for children attending the facility and that minimise the potential for environmental hazards, such as electromagnetic radiation, noise and air pollution to impact adversely on the health of children, staff and others attending the centre.

**O3** To determine the appropriate capacity of a child care centre site, by assessing:

- The characteristics of the site, including the site's ability to provide adequate building and playground facilities to meet the needs of children and staff.
- The characteristics of the surrounding locality, and in particular adjoining land uses.

**O4** To incorporate landscaping to protect the visual and acoustic privacy of adjoining properties and provide adequate screening for outdoor play areas and enhance streetscape presentation of the development.

### Provisions

*Compatibility with Surrounding Land Uses*

**P1** Applicants must address Part 3.1 and 3.2 of the Child Care Planning Guideline to ensure the site and location are conducive to the proposed use as a child care centre.

**P2** A site for a child care centre must not be located within 100 metres, or within sight, of land used for Sex Services Premises or Restricted Premises.

*Site Responsive Design*

**P43** Council will consider the results of the site analysis and must be satisfied that:

- The analysis has been used as a basis for the subsequent design of the child care centre and that the design of the child care centre is suitable for the site.
- Is satisfactory in terms of its impact on the streetscape and character of surrounding development and the local environment.
- Will have minimal impact on the amenity of neighbouring properties.

*Accessibility*

**P4** Child care centres must be located within 200m of a public transport stop (bus) or station (train).

**P5** The following areas must not have a slope that exceeds 1:10:

- Every entry to a child care centre, not being an entry for staff only.

- The whole of the Playground.
- Child Accessible Areas within a Building.

**P6** A continuous path of travel must be provided to allow access for people with a disability to the street frontage, car parking and main entrance of the building and should extend to all facilities and useable open spaces within the site. Applicants must refer to Australian Standard AS/NZS 1428.4:2009: Design for access and mobility to assist the orientation of people with vision impairment for details of the applicable standards to meet this control.

**General Provisions Applicable to Child Care Centres in All Zones**

*Mandatory Reports*

**P1** An acoustic report must be prepared and submitted as part of the DA by an accredited acoustic consultant (having qualifications eligible for membership to the Association of Australian Acoustical Consultants).

**P2** A landscape plan must be prepared and submitted as part of the DA by a suitably qualified professional.

*Land Contamination Assessment*

**P3** Where a child care centre is proposed on a site that is identified as potentially unhealthy or contaminated, an environmental site contamination assessment must be submitted with the DA to demonstrate that the site is environmentally safe and is suitable for use as a child care centre.

The provisions of State Environmental Planning Policy 55 (SEPP 55 - Remediation of Land) may apply.

*Environmental Hazards*

**P4** A child care centre must not be located within 30 metres of an electricity transmission line carrying a load equal to or greater than 132kV.

**P5** Council may refuse a child care centre that is located within 300m of a mobile phone tower.

*Heritage Assessment*

**P6** Where a child care centre is proposed on a site:

- On which a heritage item is situated; or is
- Adjacent to or within the vicinity of land on which a heritage item is situated; or is
- Within a heritage conservation area,

a heritage impact statement (HIS) must be submitted with the DA to enable Council to take into consideration the extent to which the carrying out of the proposed development would affect the heritage significance of the heritage item and its setting or the heritage significance of the conservation area.

*Fire Safety and Evacuation Plan*

**P7** A fire safety and evacuation plan is required to be lodged with Council prior to the issuing of the Occupation Certificate. Refer to Part 4.8 of the Child Care Planning Guideline for requirements.

**P8** Child care centres located on the third level or above of a building shall nominate an 'area of refuge' in the event of fire or other emergency where evacuation is not possible.

**Special Provisions in Residential Zones**

**Objectives**

**O1** To ensure that child care centres do not undermine or compromise the amenity of residential areas.

**O2** To promote child care centre building forms that are compatible with the character of existing surrounding residential development.

**O3** To allow child care centres where best practice standards of indoor and outdoor unencumbered spaced is provided.

**Provisions**

*General*

**P1** Applicants must demonstrate, through acoustic and visual analysis, that the proposed child care centre will not impact adversely on the surrounding locality and, in particular, the amenity of adjoining occupants.

**P2** Applicants must also demonstrate that the surrounding locality and land uses on adjoining land will not impact adversely on the amenity of children, staff and others occupying the child care centre.

**P3** Sites used for a child care centre must not be used for residential purposes unless the residence is located in an upper storey separate from the child care centre and accessed by way of a separate entrance.

**P4** Outdoor open space at first floor level or above will not be permitted in the R2 zone.

*Minimum Site Area / Site Frontage*

**P5** The minimum site area for a child care centre on a residential zoned land is 600 square metres excluding Rights of Way and access handles.

**P6** Sites in the R2 zone shall have a minimum site frontage of 15 metres.

*Built Area*

**P7** The maximum Built Area is 67%.

Built Area is determined to be the total floor area of all buildings relative to the area of the allotment of land expressed as a percentage. The calculation of Built Area shall be taken from the external face of walls (i.e. includes wall thickness) and includes the area of each floor or storey balconies, verandahs and the like, whether covered or

uncovered, open or enclosed garages, carports and covered car parking (except basement car parking) and outbuildings. Built Area excludes outdoor swimming pools, paths and exterior driveways.

*Setbacks*

**P8** Front setback dimensions:

| Building Component | Minimum Setback from Street Alignment |
|---|---|
| Ground floor | Existing predominant building line |
| First floor and above | 9.0m |

*Side and rear setback dimensions:

| Building Component | Minimum Setback from Side and Rear Boundaries | |
|---|---|---|
| | Side | Rear |
| Ground floor | 0.9m | 3m |
| First floor | 1.5m | 6m |

*In the case of a child care centre being located within a Residential Flat Building (three or more above ground levels), the setback requirements of the ADG shall apply to the entire development.

**Special Provisions in All Non-Residential Land Use Zones**

**Objectives**

**O1** To ensure that the proposed child care centre will be compatible with the objectives of the relevant land use zone.

**O2** To ensure that proposed child care centres in non-residential zones are compatible with, and do not affect the operation of, any existing or likely future non-residential land uses in the immediate vicinity.

**O3** To provide opportunities for child care places close to workplaces and business centres.

**Provisions**

*General*

**P1** A site used for a child care centre must not be used for residential purposes.

**Indoor and Outdoor Space Requirements**

**Overview**

This subsection does not stipulate the maximum site area requirements or minimum child numbers but rather relies upon the applicable Regulation requirements for minimum unencumbered indoor and unencumbered outdoor space to become key determinants in establishing a site's overall size.

**Objective**

**O1** To ensure the minimum unencumbered indoor and unencumbered outdoor space are provided on a child care centre site.

**P1** Refer to Part 4.1 and 4.8 of the Child Care Planning Guideline for requirements.

**Internal Design and Functionality**

**Objective**

**O1** To provide attractive, safe and functional indoor spaces which provide for positive experiences and developmental growth of children and enable adequate staff supervision of children at all times.

**Provisions**

**P1** Refer to Part 4.1 – 4.8 of the Child Care Planning Guideline for requirements.

**Playground and Landscaping Requirements**

**Overview**

This part of the BDCP applies to the provision of outdoor play spaces and playgrounds of the child care centre. These spaces are vital to the children as they provide the only opportunity for active play.

**Objectives**

**O1** To provide an outdoor play setting for children which will accommodate different forms of play and assist in the overall development of children's developmental skills e.g. gross motor, physical, social and intellectual.

**O2** To provide an outdoor play setting for children which addresses key safety requirements including appropriate fencing and restriction to public access.

**O3** To create a sensory rich, visually attractive setting in which children can learn through play.

**O4** To provide landscaping to child care centres that will make it compatible to adjoining properties and enhance the visual attractiveness of the neighbourhood.

**O5** To avoid plant species that may be hazardous to children.

**Provisions**

**P1** Refer to Part 3.4 and 4.9 – 4.13 of the Child Care Planning Guideline 2017 for requirements.

**Hours of Operation**

**Objective**

**O1** To ensure hours of operation are compatible with, and result in minimal disruption to neighbouring land uses and have minimal effect upon the amenity of adjoining and adjacent neighbours in residential areas.

**P1** Refer to Part 3.7 of the Child Care Planning Guideline for requirements.

## Traffic, Parking and Access

### Objectives

**O1** To ensure child care centres are sited and designed to allow the safe set down and pick up of children and the safe movement of children to and from the centre.

**O2** To ensure child care centres are sited and designed to allow safe vehicular movement and parking by staff, parents, visitors and service vehicles.

**O3** To ensure parking does not significantly modify the visual quality and character of residential areas.

**O4** To ensure off-street parking areas are designed to retain and enhance the quality and integrity of the streetscape.

**O5** To minimise congestion on adjoining streets caused by additional traffic and parking generated by child care centres and to therefore minimise inconvenience to nearby residents.

**O6** To ensure child care centres provide access for the mobility-impaired and adults accompanied by children and prams.

### Provisions

*Minimum Car Parking and Access Requirements for All Child Care Centres*

**P1** Car parking must be provided in accordance with the requirements for child care centre in Table 5, including the provisions dealing with parking spaces for people with disabilities. All spaces must be clearly labelled as either "reserved for staff" or "reserved for parents".

**P2** The main entry pathway areas from the road to the building must be at least 1.8 metres wide and clearly delineated.

**P3** If on-site parking is provided in a right-angled layout, pathway access from the front of the car must be provided to the main entry to the centre.

**P4** Bollards must be installed between the edge of any on-site car park and pathway from that car park to the child care centre. Bollards must be at least 1.2m in height.

**P5** One designated disabled parking space must be provided that complies with Australian Standard AS/NZS 2890.1:2004/Amendment 1:2005: parking facilities.

**P6** All access by vehicles to and from the child care centre is to be in a forward direction.

**P7** A two way, two lane vehicle access driveway must be provided. The grade of the driveway must comply strictly with Australian Standard AS/NZS 2890.1:2004/Amendment 1:2005: parking facilities.

**P8** Where vehicle access to a child care centre is from a road designated as a Regional Road or above on the Road Hierarchy Plan (Section 8.4) a left in / out arrangement must be provided.

**P9** Lines of sight from access driveways to through traffic must not be obstructed by vegetation.

*Additional Car Parking Requirements Where Maximum Capacity of Child Care Centres is Proposed*

**P11** Vehicular access arrangements to comply with Australian Standard AS/NZS 2890.1:2004/Amendment 1:2005: parking facilities, particular with respect to driveway dimensions (whether single driveway or one way system with two driveways are provided) and shall be clear of any on-site standing area used for parking.

**P12** Walkways within the car park must be clearly delineated.

*Basement Car Parking Provisions for All Child Care Centres*

**P13** Basement car parks may be permitted for child care centres on land with frontage to local and classified roads following appropriate consideration of the impacts on the residential amenity of the streetscape.

**P14** Where a basement car park for a child care centre is permitted, the car park must be no greater than 500mm above the existing natural ground level.

**P15** Where a basement car park for a child care centre is permitted, the entry to the basement requires careful consideration in order to ensure that the amenity and character of the streetscape is maintained.

**P16** All basement car parks require that vehicles enter and leave the site in a forward direction.

**P17** Where a basement car park for child care centres is permitted, and is for use by parents delivering or collecting children, the design of the car park must include a pedestrian access path that removes the need to cross the path of moving vehicles (including parking manoeuvres) when entering or leaving the child care centre.

**P18** Pedestrian congregation points (for example, at lift wells) in the basement car park are to be well lit, delineated and protected from through flow of traffic.

**P19** Access to and from the car park must be via a two way 5.5m wide (kerb to kerb) ramp. The Ramp grades from the basement car park and transition zones must comply with Australian Standard AS/NZS 2890.1:2004/Amendment 1:2005: parking facilities.

**P20** The minimum height clearance must be 2.2m. A 2.5m clearance must be provided above a designated disabled parking space in line with Australian Standard AS/NZS 2890.1:2004/Amendment 1:2005: parking facilities.

**P21** A turning area must be provided within the basement car park which is clearly marked as a non-parking area.

**P22** All pedestrian access to and from the child care facility and the basement car park is to be clear of the entry point and to be via a lift or ramp. Whether via a lift or ramp, the pedestrian access must be wheelchair accessible.

**P23** Parking and vehicle access areas must be separated from children's areas by child-proof safety fencing and gates.

**P24** Any security grill guarding entry to a basement car park must be left open during the hours of operation of the child care centre.

## Noise

### Overview

The high density usage of small spaces combined with insufficient variety, diversity and number of play opportunities for children are a known cause of a breakdown in children's behaviour with an ensuing increase in noise. In addition, the competing requirements of locating accessible child care centres in residential neighbourhoods, providing generous and unencumbered outdoor spaces for children to enjoy their activities and the right of nearby neighbours to a reasonable level of noise amenity are potentially at conflict and require a considered approach to a child care centre's planning.

### Objectives

**O1** To provide for the visual and acoustic privacy of nearby residents in their dwellings and private open spaces.

**O2** To ensure that a child care centre in a residential area does not generate unacceptable noise levels such as to impact adversely upon the amenity of adjoining properties and other properties close to the site.

**O3** To recognise that providing adequate space, variety, diversity and play opportunities for children will play a role in reducing the noise levels experienced by adjoining properties and other properties close to the site.

**O4** To protect children from excessive noise which may be generated by proximity to roads, industrial premises, aircraft or rail operations.

**Advisory Note:**
The meaning of all technical terms contained herein shall be that defined in the State Government's NSW Industrial Noise Policy (the "INP") and the Environmental Noise Criteria for Road Traffic Noise (the "ECRTN").

### Provisions

**P1** An acoustic report must be prepared and submitted as part of the DA by an accredited acoustic consultant (having qualifications eligible for membership to the Association of Australian Acoustical Consultants). Refer to Part 3.6 of the Child Care Planning Guideline for requirements.

## Privacy Considerations

### Objectives

**O1** To ensure a child care centre does not interfere with the visual privacy or amenity enjoyed by those occupying residential sites in proximity to a proposed child care centre.

**O2** To ensure that children and staff occupying a child care centre experience visual privacy and amenity.

### Provisions

**P1** Refer to Part 3.5 of the Child Care Planning Guideline for requirements.

### Sunlight Access and Ventilation

#### Objectives

**O1** To minimise overshadowing of neighbouring properties.

**O2** To ensure adequate sunlight to internal and external spaces in child care centres.

**O3** To ensure appropriate ventilation of internal spaces.

#### Provisions

**P1** Refer to part 4.4 of the Child Care Planning Guideline for requirements.

### Health and Safety

#### Objectives

**O1** To ensure child care centres are healthy and safe for children, staff and visitors.

#### Provisions

**P1** Proposals must comply with current Australian Playground Standards.

**P2** Written proof of compliance with AS/NZS4422:1996 - Playground Surfacing requirements must be provided.

### Child Care Centres on Classified Roads

This section sets out the additional provisions which must be complied with, where an application seeks to permit child care centres on a classified road.

#### Overview

Child care centres may be permissible on classified roads, under exceptional circumstances, and only where the proposed development complies with all of the provisions below. This section seeks to allow greater flexibility in locating child care centres on classified roads, while at the same time, maintaining and ensuring the highest standards of safety for users and occupants of the development.

**Advisory Note:**
Refer to *Appendix 8.4: Road Hierarchy Plan* to identify which roads may be interpreted as Classified Roads.

#### Objectives

**O1** To provide greater opportunities for the provision of child care centres throughout the Burwood LGA.

**O2** To ensure the highest possible safety of any child care centres on a classified road.

#### Provisions

*Mandatory Reports*

**P1** In addition to all other requirements, a DA seeking approval for a child care centre on a classified road must also submit an air quality report prepared by a suitably qualified professional that verifies that the air quality of the subject site is within the relevant guidelines for a child care centre use.

*Access Requirements*

**P2** Access must be to a local road in all circumstances where possible.

**P3** All vehicular and pedestrian access to child care centres located on a Classified Road which also have frontages to a local unclassified road must be provided via the local, unclassified road frontage with a minimum distance of 30m between the edge of the driveway or pedestrian entry (e.g. kerb alignment) and the edge of the classified road.

*Emergency and Evacuation Procedures*

**P4** Refer to Part 4.8 of the Child Care Planning Guideline for requirements.

*Site Safety Measures*

**P5** Suitable physical barriers must be provided to prevent wayward vehicles entering the site and to ensure protection of the external play areas.

**P6** External wall construction to the elevation fronting the classified road must be suitably durable to afford greater protection to all occupants of the development.

**P7** A safety barrier or similar measure (such as a retaining wall on an elevated site) must be provided along the property boundary with the classified road to prevent wayward vehicles entering the site.

*Pedestrian Safety Measures*

**P8** Pedestrian safety fencing around the perimeter of the site, including the on-site car parking area must be provided. The design of the perimeter fencing must require that all pedestrian access be provided via a designated pedestrian path which traverses the car parking area via a circuitous, indirect route, to actively discourage parents/carers from parking on the classified road.

**P9** Pedestrian safety fencing must be provided around the perimeter of any child care centre and associated car parking areas on sites located on a Classified Road which also have a side or rear street frontage to actively discourage parents from parking on the classified road.

## 5.4 Boarding House and Co-Living Housing

State Environmental Planning Policy (Housing) 2021 (Housing SEPP) includes requirements for boarding house and co-living housing.

In addition to the Housing SEPP, applicants should be aware of their obligations under the Boarding Houses Act 2012 and the requirements of the Boarding Houses Regulation 2013.

This section of the DCP aims to encourage the provision of high quality boarding house and co-living housing developments by providing objectives and controls in addition to those provisions in the Housing SEPP.

This section applies to

- development of new boarding house and/ or co-living housing,
- change of use of existing buildings to boarding house or co-living housing, and
- alterations and additions to existing boarding house developments.

Reference should also be made to Area-based controls and Heritage provisions under other sections of this DCP where applicable.

**General Objectives**

O1. Ensure that boarding house and co-living housing developments are well located, close to public transport and services.

O2. Ensure that the overall design of boarding house and co-living housing developments do not detract from the existing character of the neighbourhood.

O3. Ensure that the design of new boarding house and co-living housing development results in an acceptable level of amenity for future occupants through consideration of solar access, open space provisions, privacy, safety and security.

O4. Ensure that boarding house and co-living housing developments deliver an acceptable level of amenity and minimise the impacts on neighbouring properties.

### 5.4.1 Site Planning

**Objectives**

O5. Ensure the site is of sufficient width and area so is capable to
   - accommodate practical vehicular access and car manoeuvring,
   - provide open space with satisfactory level of amenity, and
   - provide reasonable separation from the adjoining properties.

O6. Ensure the site is of a sufficient dimension to accommodate high quality development.

**Provisions**

P1. The minimum lot size for a boarding house and co-living housing developments is to be consistent with the requirements of the Housing SEPP.

P2. The minimum site frontage for boarding house or co-living housing developments is 17m.

P3. Development must not result in the isolation of adjoining land. Where a development may result in the creation of an isolated site or sites, the application must address the site isolation requirements under relevant sections of this DCP.

### 5.4.2 Local Streetscape Character

**Objectives**

O7. Ensure that new development is compatible with the scale and compliment the character of the surrounding development and streetscape.

O8. Ensure that new development proposed on land that is within the vicinity of a heritage item or within a Heritage Conservation Area is designed so that it is sympathetic to the heritage significance of the heritage item or the HCA and sensitively integrate the new development into its surrounding area.

**Provisions**

P4. The development application is to be supported by a statement and detailed site analysis which demonstrates to Council's satisfaction the compatibility of the design of the development with the character of the local area.

The statement must include the following:

- a description of the existing character in terms of elements that contribute to the overall character of the local area (comprising streetscape and visual catchment area),

- any design responses for the following characteristic elements, as a minimum:
  i. predominant building type,
  ii. predominant height of buildings,
  iii. predominant front setback and landscape treatment,
  iv. predominant side setbacks,
  v. predominant rear alignment of buildings and rear landscaping,
  vi. the architectural form (built form, massing and proportions and roof form and pitch), materials and finishes of existing buildings that contribute to the character of the local area,
  vii. predominant parking arrangements on sites within the area (location, structures), including the location of vehicular crossings and driveway entry.

- an explanation of how the design of the proposed development has regard to the site analysis provisions in accordance with Section 2.2 of the BDCP, and

- an explanation of how the design of the proposed development has regard to the design excellence provisions in P6 and P7.

P5. Boarding house and co-living housing developments located in the vicinity of a heritage item or within a Heritage Conservation Area must be designed to sympathetically address the significance of the heritage item or the Heritage Conservation Area. The development application is to be supported by a statement that demonstrates compatibility of the design of the development with the character of the local area. The statement must address at least the following:

i. elements identified in P4 above,
ii. the significance of the heritage item or Heritage Conservation Area,
iii. the age and style of existing buildings,
iv. the curtilage of the Heritage Item, and
v. predominant design features such as verandas, eaves and parapets.

### 5.4.3 Design Excellence

**Objectives**

O9. Provide quality design that delivers the highest standard of architectural, landscape and urban design.

O10. Provide design excellence that inspires and encourages the neighbourhood to follow.

O11. Enhance the qualities of the area and design to uplift the future character of the neighbourhood.

**Provisions**

P6. Where Clause 6.5 of the BLEP 2012 applies, the Development Application must identify, through a design statement, how design excellence will be achieved in the proposed development. The design statement must include drawings and examples of the building features, textures, materials, finishes and colours and how they are suitable to the subject site and its context.

P7. If Clause 6.5 of the BLEP 2012 does not apply, the new development must exhibit design excellence and the Development Application must identify, through a design statement, how design excellence will be achieved. The design statement must respond to the following:

(a) whether a high standard of architectural, landscape and urban design has been achieved (including in the materials used and in detailing appropriate to the location, building type and surrounding buildings),

(b) whether the form and external appearance of the proposed building, and ground level detailing, will significantly improve the quality and amenity of the public domain,

(c) how any streetscape and heritage issues have been addressed,

(d) whether the amenity of the surrounding area, including any view corridors, vistas or landmark locations, will be adversely affected,

(e) how traffic circulation and vehicular access will be addressed and whether the proposed development supports the provision of high quality pedestrian, cycle and service access,

(f) whether any adverse effect on pedestrian movement and experience will be avoided (and whether the public transport interchange as the focal point for pedestrian movement in the surrounding area will be reinforced and the ease of pedestrian access to and from that interchange will be facilitated),

(g) diversity of public open spaces at the ground level, as well as the roof and other levels of buildings,

(h) how the bulk, mass, modulation, separation, setback and height of buildings have been addressed and whether they are appropriate in the context of existing and proposed buildings,

(i) whether a high standard of ecologically sustainable design (including low-energy or passive design) will be achieved and overshadowing, wind effects and reflectivity will be minimised.

### 5.4.4 Built form Design

#### Objectives

O12. Establish the appropriate separation of the built form to the public domain and adjoining development.

O13. Ensure ceiling heights allow for sufficient daylight access and natural ventilation.

#### Provisions

P8. The main entrance of the boarding house or co-living housing development is to be provided within the street elevation to address the street. Side entrances will only be permitted on sites with a secondary frontage and only where they result in a cohesive resolution of the streetscape and do not adversely impact upon neighbouring properties.

P9. Boarding house and co-living housing developments must have a minimum floor to ceiling height of 2.7m for habitable rooms. Subterranean habitable rooms will not be supported.

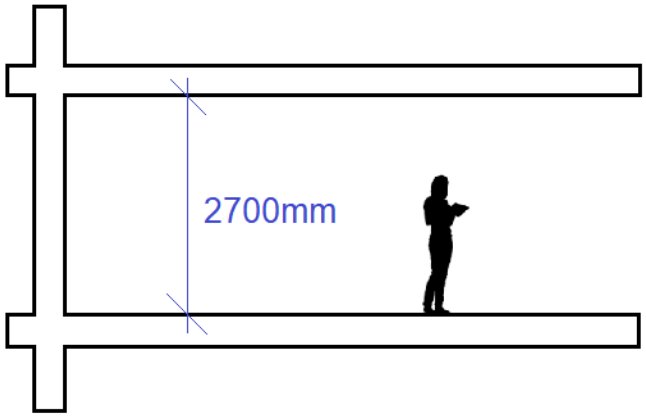



**Figure 96. Minimum floor to ceiling heights for boarding house and co-living housing**

P10. In the case of existing dwellings being converted into boarding house or co-living housing, existing floor to ceiling heights are to be maintained or be no less than 2.7m, whichever is greater. Contributory facade elements and the integrity of the dwelling's structural framework are to be maintained.

P11. Any new boarding house and co-living housing developments in an R1 General Residential Zone shall provide a front setback that is equivalent to the predominant street setback or 6m, whichever is greater.

P12. For new boarding house or co-living housing development that has less than 3 storeys in an R1 General Residential Zone, the minimum side and rear setbacks shall comply with the following minimum requirements:

| | Side Setback | Rear Setback |
|---|---|---|
| Ground Floor | 2.0m | 6m |
| First floor | 3.5m | 6m |

**Advisory Note:**
Any new boarding house or co-living housing development that has at least 3 storeys, the building will comply with the minimum building separation distances specified in the Apartment Design Guide as required by Section 25 and Section 69 of the State Environmental Planning Policy (Housing) 2021.

P13. In a residential zone, where a side or rear boundary of the development is contiguous with a heritage item, the required minimum setback is:

- 5m for any part of the building at or above ground level, and
- 4m for any underground excavation, irrespective of the setback of the heritage building from its boundary or landscaping of that setback.

P14. The fire stairs, pump rooms or similar structures must not detract from the overall visual amenity of, and should not be located within the setback area.

P15. Balconies or pergolas are not to encroach into the minimum side and rear setback areas.

P16. Development must locate the private open spaces and communal open space behind the front building line, with the exception of balconies or pergolas which may be located within the front setback area, however these must be designed so as to not encroach more than 1.5m into the front building setbacks.

### 5.4.5 Visual Appearance and Articulation

**Objectives**

O14. Ensure well-proportioned built forms, façade treatments and varied architectural character that minimises the appearance of building bulk from the public domain, including along the street.

O15. Ensure that the scale, modulation and façade articulation of development responds to its context.

O16. Manage the floorplates with pragmatic internal planning that sensibly informs the façade and external articulation.

O17. Ensure services including fire booster valves, substations and other infrastructure do not detract from the streetscape presentation of a building.

**Provisions**

P17. Building facades must be clearly articulated and employ high quality materials and finishes that enhance and complement the streetscape character. Design solutions may include:

- a composition of varied building elements,
- a defined base, middle and top of buildings,
- revealing and concealing certain elements,
- changes in texture, material, detail and colour to modify the prominence of elements, and
- varied roof forms that add visual interest.

P18. Building facades should be well resolved with an appropriate scale and proportion to the streetscape and human scale. Design solutions may include

- well composed horizontal and vertical elements,
- variation in floor heights to enhance the human scale,
- elements that are proportional and arranged in patterns,
- public artwork or treatments to exterior blank walls, and
- grouping of floors or elements such as balconies and windows on taller buildings.

P19. Large areas of blank, minimally or poorly articulated walls are not acceptable.

P20. Development must not rely solely on the use of two-dimensional colour and materials to create visual interest. Modulation and articulation in the building form must be considered in the design of the building. Large span or proportion of rendered cement on elevations is not permitted.

P21. Important corners should be given visual prominence through a change in articulation materials or colour, roof expression or change in height.

### 5.4.6 Internal Design

#### Room Design

P22. The internal area of private rooms within co-living housing developments and boarding rooms must comply with the requirements of the Housing SEPP 2021.

#### Communal Living Area

P23. Communal living areas in boarding house and co-living housing developments must comply with the requirements of the Housing SEPP 2021. The calculation of the area can include any dining area and area that is intended to be used for recreation, but cannot include bedrooms, bathrooms, laundries, reception area, storage, kitchens, car parking, loading docks, driveways, clothes drying areas, corridors and the like.

P24. Where communal living areas are situated:
- on ground level of a development, these must be located adjacent to the outdoor communal open space; or
- above ground level of a development, these must be located as close to any outdoor communal open space where possible.

P25. For boarding house and co-living housing developments 4 storeys or more, a communal living area is to be provided for every 4 storeys or part thereof.

## Kitchen Facilities

P26. A private kitchenette should include at minimum a sink, cupboards and cooktop. Laundry facilities can be integrated into the kitchenette. An area with a minimum width of 600mm immediately in front of the kitchen joinery must be provided for the purpose of kitchen. Details are to be included on the Architectural Plans submitted with the Development Application.

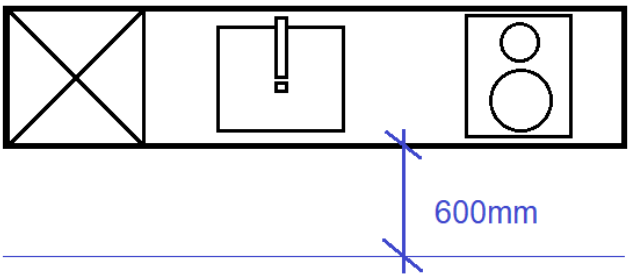



**Figure 97. Kitchen area calculation**

P27. Where communal kitchen rooms are provided within a development, these must be situated adjacent to the communal living area and must comply with the following requirements. Details are to be included on the plans submitted with Development Applications.

| | |
|---|---|
| Class 1b Kitchen | A communal commercial grade kitchen area with kitchen sink and facilities for food preparation, tables and chairs in a central location, accessible to all residents with a minimum area of 6.5m$^2$ for one to six residents or 11m$^2$ for 7-12 residents |
| Class 3 Kitchen | A commercial grade communal kitchen and dining area with a minimum area of 15m$^2$ plus 1m2 per additional person above the minimum 12 persons. |
| Kitchen Requirements | The following must be provided in any kitchen as a minimum:<br>▪ One sink for every six people with running hot and cold water.<br>▪ One stove top cooker for every six people.<br>▪ Exhaust ventilation.<br>▪ A lockable drawer or cupboard for food storage for each guest in the kitchen area. |

## Laundry Facilities

P28. For co-living housing developments, private laundry facilities must be provided within each individual room.

P29. For boarding house developments, adequate laundry facilities will be available within the premises and could be provided as private, communal or a combination of both.

P30. Where a communal laundry is provided, it is to provide:
- 1 washing machine/dryer (or combo) for every 8 rooms or part thereof, and
- 1 large laundry tub with running hot and cold water for every 8 rooms or part thereof.

P31. A least one outdoor clothes drying area shall be provided and located to maximise solar access. The outdoor clothes drying area must be well integrated within the

landscape design and must not be located where visible from the street or public domain.

P32. All appliances achieve an energy star rating of 3.5 or higher, unless otherwise legislated.

### 5.4.7 Visual Privacy and Acoustic Amenity

**Objectives**

O18. Ensure an acceptable level of visual privacy and acoustic amenity is provided for the development and adjoining residential uses

**Provisions**

P33. The siting of windows and other openings and communal or gathering spaces above ground level should avoid direct overlooking to adjoining residential uses. Where overlooking cannot be avoided, redirection of views to the front or rear should be incorporated into the design of the development.

P34. Bedrooms within boarding house and co-living housing developments must be designed to locate bedrooms away from significant internal and external noise sources.

P35. Consideration of the design of the development should aim to minimise the impact of noise internally and to the adjoining development. The design of the development should consider:
- the location of openings relevant to adjoining uses and neighbouring properties,
- locating similar building uses (such as bathrooms) back to back

P36. Noise mitigation treatments and design considerations for developments adjoining busy roads or rail corridors, that satisfy the requirements for habitable rooms in accordance with Department of Planning, Industry and Environment's 'Development Near Rail Corridors and Busy Roads – Interim Guideline' and the requirements of Clause 2.120 of SEPP (Transport and Infrastructure) 2021 must be addressed, where appropriate. Details are to be included with the documentation submitted with the development application.

### 5.4.8 Landscaping and Open Space

**Objectives**

O19. Ensure sufficient and well located private and communal open space to meet the recreational needs of residents.

O20. Provide areas for deep soil planting to achieve increased urban tree canopy cover and deliver green grid connections.

O21. Maximise the landscape curtilage around the site for quality planting, establishment of tree canopies and creation of useful outdoor spaces in addition to boundary screen planting.

O22. Incorporate landscape design early in the design process to provide optimal outcomes for the residential amenity. Landscaping needs to be coordinated with other disciplines to ensure building design and service locations complement landscape and public domain.

**Provisions**

**Landscaping and Deep Soil**

P37. A detailed landscape plan must be submitted with any development application for boarding house and co-living housing developments.

P38. Existing significant trees and vegetation, where achievable, must be incorporated into the proposed landscape treatment.

P39. Deep soil zones are to be provided to meet the following minimum requirements.

| Site area | Minimum dimensions | Deep soil zone (% of site area) |
|---|---|---|
| 800m$^2$ – 1,500m$^2$ | 3m | 10% |
| Greater than 1,500m$^2$ | 6m | |

P40. Deep soil zones should be located to retain existing significant trees and to allow for the development of healthy root systems, providing anchorage and stability for mature trees. Design solutions may include:

- basement and sub-basement car park design that is consolidated beneath building footprints,
- use of increased front and side setbacks,
- adequate clearance around trees to ensure long term health, and
- co-location with other deep soil areas on adjacent sites to create larger contiguous areas of deep soil.

P41. Alternative forms of planting should be provided, such as planting on structures while ensuring appropriate stormwater management is achieved where:

- the location and building typology have limited or no space for deep soil at ground level (e.g. central business district, constrained sites, high density areas, or in centres), or
- there is 100% site coverage or non-residential uses at ground floor level.

P42. Planting in deep soil areas is to include trees that achieve a minimum mature height of 6m.

P43. Structures in a landscaped area need to be reinforced for additional saturated soil weight, as appropriate.

P44. Where development is proposed in an established residential zone, the front setback area must be landscaped to be compatible with the existing streetscape.

P45. Landscaped areas should take advantage of existing site conditions when responding to features such as:

- Changes of level,
- Views, and

- Significant landscape features including trees and rock outcrops

**Private Open Space**

P46. Private open space provided to individual rooms of boarding house or co-living housing development must have a minimum dimension of 1m and minimum area of $2m^2$.

P47. For rooms with access to the ground level or a podium, private open space must be provided to individual rooms, with access from the room.

P48. For each room above ground level facing street along the front elevation, a private open space in the form of balcony must be provided to increase the visual interest and enhance the passive surveillance to the public domain.

P49. Where possible private open space shall be provided to individual rooms. The private open space is to be designed so as to not to impact the amenity of neighbouring residential properties.

P50. Private open spaces above ground level can be designed in the form of recessed balconies to mitigate privacy impacts to the adjoining residential properties.

P51. Clear glazing to balustrades must be avoided. The balustrade design should be visually recessive.

**Communal Open Space**

P52. Communal open space is to be provided in accordance with the requirements of the Housing SEPP 2021 and must be consolidated into a well-designed, easily-identifiable and useable area.

P53. Communal open space may be provided above ground level where:

i. the proposed elevated communal open space will provide a high level of amenity as a communal open space at ground level of the site; and

ii. there will be no significant impact on surrounding properties in respect to the loss of visual and acoustic privacy.

P54. At least 50% of the required communal open space area is to receive 2 hours of direct sunlight between 9am and 3pm on 21 June.

P55. Roof top communal open space areas, amenities and common rooms should include equitable access for all residents, and must be designed to ensure that noise and overlooking of residential neighbours will be avoided, by way of screening and setbacks from boundaries.

P56. Where roof top communal open space is proposed on a site adjoining land that permits lower maximum building height, the communal open space is to be setback to minimise the extent of overlooking onto the adjoining properties.

P57. Ancillary structures on the roof such as lift overruns and staircases should be located where their impact is minimised to reduce their visual dominance. Balustrades should be visually recessive or be incorporated into a roof feature.

P58. Communal facilities such as barbeques, seating and pergolas shall be provided within the communal open space. Details are to be included on the landscape plan submitted with the development application.

P59. Planting should be used to screen communal open space from adjoining properties or the public way, with trellis, screens with climbing vines or the like, used to complement deciduous tree planting.

### 5.4.9 Parking

**Objectives**

O23. Minimise the adverse impact of vehicles on the amenity of the development, streetscape and neighbourhood.

O24. Ensure adequate provision of secure bicycle parking.

O25. Ensure that basement car parking is appropriately designed for user safety and environmental sensitivity.

**Provisions**

P60. The number of car parking spaces will be provided at the rate as prescribed under the SEPP (Housing) 2021.

P61. At least one parking space will be provided for a bicycle for every 5 rooms in co-living housing and boarding house development.

P62. At least one parking space will be provided for a motorcycle for every 5 rooms in co-living housing and boarding house development.

P63. The design and consideration of the car park or parking facilities shall refer to the relevant Transport and Parking section in the BDCP.

### 5.4.10 Operational Management

**Objectives**

O26. Ensure management and operational practices secure the safety and wellbeing of occupants.

O27. Ensure that development is operated and maintained in a manner that minimises impacts on adjoining owners and residents.

O28. Ensure that clear and suitable operational measures and practices are in place for the on-going management of boarding house and co-living housing developments.

**Provisions**

P64. Co-living housing developments are to be managed by a manager who has overall responsibility including the operation, administration, cleanliness, maintenance and fire safety of the premises. Management arrangements are to be set out in a Plan of Management.

P65. A development application for boarding house or co-living housing must be accompanied by a Plan of Management which provides all details relevant to the operation of the premise. The Plan of Management, as a minimum, must address the ongoing management and operational aspects of the development. A template Plan of Management is included at the Appendix 8.5.

**Advisory Note:**
The approved Plan of Management will form part of any development consent and any changes to the Plan of Management will require an application under the provisions of s4.55.

### 5.4.11 Fire Safety

#### Objectives

O29. Ensure the appropriate level of fire safety within all boarding house developments and that acceptable levels of service provision are maintained.

#### Provisions

P66. The relevant fire safety requirements under the Building Code of Australia/ National Construction Code shall be considered at early state of the design of boarding house and co-living housing development.

P67. An Emergency Evacuation Plan must be prepared as part of the Plan of Management detailing the evacuation procedures in the event of the emergency, provision of resident log book, identifying the assembly point and detailing how residents will be made aware of the procedures contained within the plan. The Emergency Evacuation Plan must be clearly displayed within each room and in the communal living areas of the development. A condition of consent will be included in this regard.

### 5.4.12 Service Facilities

#### Provisions

P68. Consideration shall be given to waste collection and removal at the early stage of the overall design of the building. The waste management and services shall comply with the relevant requirements under Section 6.2 of the BDCP and shall be designed to minimise adverse impacts to the amenity of the residents and the neighbouring properties.

P69. Garbage bin areas and external storage facilities shall be sited and designed for attractive visual appearance (e.g. with appropriate screening) and function and complement the architecture and environs. The size, capacity and location of garbage bin areas shall be in accordance with the Waste Management provisions of this DCP.

P70. Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under Section 3.2.4 Street-Front Activities and Building Access. Refer to **Figure 1** and **Figure 2**.

P71. Fire safety and power supply utilities are to comply with provision P12 under Section 3.2.4 Street-Front Activities and Building Access. Refer to **Figure 3**.

P72. Mechanical and ventilation equipment are to comply with the provisions under Section 3.2.4 Street-Front Activities and Building Access.

P73. Building services elements such as electrical substation, OSD tanks, gas meters, fire hydrant boosters and the like should be thoughtfully integrated either with building or landscape design, to improve the entry experience and maximise pedestrian amenity within the public domain interface along the street. These details must be indicated on the plans submitted with the development application.

### 5.4.13 Signage

**Provisions**

P74. A maximum of one external sign will be permitted with a maximum area of 0.3m2. The sign shall indicate the address of the property.

P75. Details of the signs location (if proposed) are to be shown on the development application plans.

## 5.5 Backpackers' Accommodation

Backpackers' accommodation is permissible in all the Business Zones under the BLEP 2012, except for the Neighbourhood Centre Zone. These zones are well-located for public transport services on which backpackers are likely to rely.

Backpackers' accommodation as defined in the Standard Instrument means a building or place that provides:

- Temporary or short term accommodation on a commercial basis, and
- Shared facilities, such as a communal bathroom, kitchen or laundry, and
- Accommodation on a bed or dormitory-style basis (rather than by room)

The planning provisions aim to improve the amenity of occupants of backpackers' accommodation, and minimise negative impacts on the amenity of neighbouring development. The provisions apply to DAs seeking to:

- Erect or construct a new backpackers' accommodation
- Convert or adapt existing buildings
- Additions to, refurbish or upgrading of existing backpackers' accommodation

### Objectives

The broad objectives of this BDCP Part are to:

**O1** Recognise backpackers' accommodation as temporary and short term accommodation for tourists or visitors.

**O2** Provide guidance to applicants and professionals on building requirements and Council regulations in the preparation of a Development Application for backpackers' accommodation.

**O3** Ensure that any building providing backpackers' accommodation maintains a satisfactory standard of amenity.

**O4** Ensure the appropriate level of fire safety within all backpackers' accommodation and that an acceptable level of service provision is maintained.

### Definitions

The key terms in this DCP section include:

- **Short term accommodation** is defined as accommodation which is provided for short term residents or tourists staying less than three months.
- **Temporary** means the provision of short term accommodation on a nightly, weekly or monthly basis, with a person staying in the premises for not more than two months.

### Provisions

*Building Density and Height*

**P1** The maximum permissible FSR for backpackers' accommodation is that applying to the location in the FSR Map under the BLEP 2012.

**P2** The maximum permissible building height for backpackers' accommodation is that applying to the location in the Building Height Map under the BLEP 2012.

*Setbacks*

**P3** Provisions regarding building setbacks for backpackers' accommodation will be assessed on their merits.

*Room Sizes, Recreational Areas and Washing Facilities*

**Sleeping Rooms**

**P4** The number of people accommodated in a room will be determined by allocating a minimum of 5.5 sqm of floor area of the room for each person.

**P5** Light and ventilation shall be provided to sleeping rooms in accordance with the provisions of the Building Code of Australia (BCA).

**P6** Each room should contain adequate secure storage facilities to provide storage space for clothes and travel gear.

**P7** Appropriate floor coverings shall be used in the rooms to minimise the impact of noise.

**P8** Bedding and flooring must be easily cleaned and maintained.

**Kitchen and Dining Areas**

**P9** The floor area of the combined kitchen and dining area will be determined on the basis of 1 sqm per occupant.

**P10** The dining area must be able to accommodate up to 50% of occupants at any one time

**Toilets and Showers**

**P11** Toilet and shower facilities within the premises are to comply with the provisions of the Building Code of Australia

**P12** Toilet and shower facilities for employees and persons with a disability are to be provided in accordance with the provisions of the BCA.

**P13** The amount of washing facilities to be provided are is calculated on the following figures:

| **Facilities** | **No of persons** |
|---|---|
| Bathrooms (shower and or plunge bath) | One per 10 |
| Washbasins | One per 10 |
| Toilet - up to 10 residents | One per 10 |
| Toilets - more than 10 residents | One per 20 males<br>One per 15 females |

**P14** Toilet facilities must be provided in a separate compartment from the bathroom / shower room.

**Laundries and Drying Facilities**

**P15** A common laundry shall be provided for the use of all residents of the premises.

**P16** Provision shall be made for the placement of an outdoor clothes line.

*Operational Controls*

**Management Plan**

**P17** A management plan is to be developed and maintained and be accessible to Council as requested. The management plan shall address the following operational aspects of the backpackers' accommodation:

- Fees for residency.
- Kitchen usage, the provision of meals or resident provision of meals.
- Use of communal space and facilities.
- Parking for cars.
- Cleanliness and maintenance of the property and grounds.
- House rules, e.g. guest behaviour, activities and noise, visitor policy, operating hours of outdoor common areas, use of alcohol and/or drugs.

**P18** An operational Management Plan is to be submitted with each DA for a backpackers' accommodation (including new and existing boarding house) to ensure that the proposed premises operate in a manner that maintains a high level of amenity.

**Management and Registration**

**P19** A management office shall be visibly located within the backpackers' accommodation and be accessible to all boarders.

**P20** The backpackers' accommodation is to be registered annually with Council.

**P21** Properties located adjacent to the backpackers' accommodation premise must be provided with a 24 hour telephone number for the property manager/caretaker.

**On-Site Management**

**P22** All new backpackers' accommodation is to have a contact person acting as an agent of the Manager and must be nominated and contactable 24 hours per day, 7 days a week.

**P23** The agent may be accessible off-site or be one the occupants residing on the premises.

**P24** A clearly visible sign with the name and telephone number of the contact person must be displayed externally at the front entrance of the boarding house and internally in the common area.

**P25** Where on-site managers are provided, they must be over 18 years of age.

**Maximum Number of Residents**

**P26** The number of occupants (not including children under the age of 5 years) must not exceed the maximum number of persons determined by Council to be accommodated in each bedroom or dormitory and in the whole premises.

**Bedroom Numbering**

**P27** A schedule showing the numeral designation of each bedroom and the number of persons permitted to be accommodated in each room must be conspicuously displayed on the premises.

**P28** Each bedroom must be numbered in accordance with the schedule and must be displayed clearly on the door of or in each bedroom the maximum number of persons allowed to be accommodated in the bedroom.

*Fire Safety and On-Site Security Measures*

**Fire Safety Regulation**

**P29** Backpackers' accommodation must provide a high level of fire safety. Fire management practices are to be established to ensure safe and efficient access and egress and that all fire equipment and warning systems are regularly checked on an annual basis (a fire safety statement is to be supplied to Council) and maintained in accordance with the provisions of the Local Government Act 1993 and Building Code of Australia (BCA).

**P30** A floor plan must be permanently fixed to the inside of the door of each sleeping room to indicate the available emergency egress routes from the respective sleeping room.

**P31** A Council requires new premises to comply with the provisions of the Building Code of Australia (BCA). Where a DA proposes alterations and additions or upgrade to an existing backpacker premises it will be expected the whole of the building will be upgraded in respect of Fire Safety and will be assessed on its merits.

**Security Cameras**

**P32** All new backpackers' accommodation must provide closed circuit television cameras that are installed in all common areas and shall be connected to a central monitoring centre within the accommodation.

**Additional Safety Measures**

**P33** Additional safety and security measures for all residents may include but are not limited to such things as internal signage indicating the property caretaker or manager and contact number, emergency contact numbers for essential services such as fire, ambulance, police, and utilities such as gas, electricity, plumbing, installation of permitter lighting, appropriate fencing and secure gates, all residents to have own keys.

*Acoustic Impact Minimisation*

**P34** The following noise abatement provisions should be complied with:

| | |
|---|---|
| Design considerations for noise abatement include consideration of the: | ▪ Location of windows in respect to the location of windows in neighbouring properties.<br>▪ Sensitive location of communal outdoor areas away from main living area or bedroom windows of any adjoining dwelling.<br>▪ The use of screen fencing or planting as a noise buffer for external noise sources or in terms of transferral of noise from communal areas to surrounding land uses. |

| | |
|---|---|
| | ▪ The use of acoustic barriers as a noise buffer to external noise sources from surrounding land uses and/or passive design considerations within the building to minimise noise intrusion<br>▪ The incorporation of double glazing of windows or use of glass blocks (for light penetration but not suitable where natural ventilation is also required)<br>▪ Locate similar building uses (such as bedrooms to bathrooms) back to back internally within the building, to minimise internal noise transmission. |

## 5.5A Serviced Apartments

Serviced apartments are defined in the BLEP 2012 as a building (or part of a building) providing self–contained accommodation to tourists or visitors on a commercial basis and that is regularly serviced or cleaned by the owner or manager of the building or part of the building or the owner or manager's agent. This part of the BDCP provides detailed controls to guide development of serviced apartments for short term stay purposes.

Serviced apartments play a significant and growing role in the tourist and visitor accommodation market and may become a more common form of development in the Burwood LGA as the BLEP 2012 permits them in all business zones except the B1 Neighbourhood Centre zone, and in the R1 General Residential zone.

Serviced apartments in compliance with the definition are not residential flat buildings. Strata subdivision of the units in a serviced apartment development may be inconsistent with the definition of serviced apartments and is not permitted by Council unless certain conditions apply.

Given the requirements of the definition, serviced apartments are to operate on a commercial basis and entail regular servicing and cleaning. They should be furnished and a maximum letting period of three months should apply.

Applications for serviced apartments therefore must be accompanied by a Management Plan that confirms these arrangements in compliance with the definition.

### Objectives

The broad objectives of this BDCP Part are to:

**O1** Recognise serviced apartments as temporary and short term accommodation for tourists or visitors.

**O2** Provide guidance to applicants and professionals on building requirements and Council regulations in the preparation of a Development Application for serviced apartments.

**O3** Ensure that any building providing serviced apartments maintains a satisfactory standard of amenity.

**O4** Ensure the appropriate level of fire safety within all serviced apartments and that an acceptable level of service provision is maintained.

### Provisions

*Operation and Management*

**P1** The serviced apartments in an approved serviced apartments development are to be maintained and operated as a single entity.

**P2** An operational Management Plan is to be submitted with each DA for a serviced apartment development to ensure that the proposed premises operate in a manner consistent with the definition of serviced apartments.

**P3** The Management Plan must provide satisfactory details on the following matters:

- Provision of a manager or an agent of the manager within the serviced apartment premises, the hours of the manager's availability and contact details 24 hours per day, 7 days a week.
- Details of the Emergency Management and Evacuation Plan for the premises
- The on-site management is responsible for operation, administration, cleanliness and fire safety of the premises including compliance with the Management Plan and Emergency Management and Evacuation Plan
- Provision of a "front desk" where keys are made available to clients and that also deals with other relevant matters such as the provision of information on the use of common areas and facilities, car parking and house rules.
- Details of the regular servicing and cleaning of the serviced apartments, and details of the permanent furnishing of the apartments.
- Details of the letting arrangements, with a provision to be included that limits the stay of tenant(s) to a maximum of three months.

**P4** A clearly visible sign with the name and telephone number of the on-site manager must be displayed externally at the front entrance of the serviced apartments.

**P5** Consents issued for serviced apartments developments will be conditioned to the effect that the maximum length of stay of a client is not to exceed three months to ensure that developments comply with the relevant definitions in the BLEP 2012.

**P6** All serviced apartments must be furnished prior to occupation.

*Strata Ownership*

**P7** Strata subdivision may be approved where all of the units in a development are a group in a strata plan. Parking for the serviced apartments also must be grouped together with the serviced apartment units in the strata plan.

**P8** Strata subdivision of individual serviced apartment units or groups of units may be permitted only where a covenant in Council's favour is placed on strata title in accordance with Section 88E of the Conveyancing Act 1919 restricting the use of the premises to tourist and visitor accommodation for the purposes of providing temporary and short term accommodation of no more than three months duration.

**P9** In both cases the by laws of the final strata plan are to include a provision requiring the ongoing management of the lots in the strata plan that comprise the serviced apartments complex as a joint entity.

*Mailbox and Postal Facilities*

**P10** Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under Section *3.2.4 Street-Front Activities and Building Access.* Refer to **Figure 1** and **Figure 2**.

*Fire Safety and Power Supply Utilities*

**P11** Fire safety and power supply utilities are to comply with provision P12 under Section *3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 3**.

*Mechanical and Ventilation Equipment*

**P12** Mechanical and Ventilation Equipment are to comply with Provisions 15, 16, 17, 18 under Section 3.2.4 Street-Front Activities and Building Access.

## 5.6 Signage and Advertising

### 5.6.1 Introduction

Signage and advertising has become a major visual element in the contemporary urban environment. Signage is located mainly in commercial, business and retail areas. In the Burwood LGA, these include the Enterprise Corridor zone along Parramatta Road, the Burwood and Strathfield Town Centres, the Enfield and Croydon Park Local Centres, the Neighbourhood Centres mainly in The Strand, Croydon and the Light Industrial zone in Enfield. In residential zones, only limited types of signage are permitted that identify buildings or are associated with permitted businesses.

Signage needs to be managed to ensure that it does not detract from the scenic quality of the urban environment. There needs to be an appropriate relationship between signage and other development on land. The buildings in an area, and their context, should be the predominant feature, not signage.

**Definitions**

The BLEP 2012 adopts the Standard Instrument definitions for signage (the group term) and the sub terms of advertising structure, building identification sign and business identification sign. Advertisement is also defined. An explanation of each type is provided below:

**Signage.** This is the group term. It means any sign, notice, device, representation or advertisement that advertises or promotes any goods, services or events and any structure or vessel that is principally designed for, or that is used for, the display of signage, and includes any of the following:

(a) an advertising structure

(b) a building identification sign

(c) a business identification sign

but does not include a traffic sign or traffic control facilities.

**Advertising Structure.** This is a type of signage. It means any structure that is used principally for the display of an advertisement. A structure is something built or constructed, e.g. of parts, arranged in a certain way. An **Advertisement** means a sign, notice, device or representation in the nature of an advertisement visible from any public place or public reserve or from any navigable water.

**Building identification sign.** This is also a type of signage. It means a sign that identifies or names a building and that may include the name of a building, the street name and number of a building, and a logo or other symbol but does not include general advertising of products, goods or services.

**Business identification sign.** This is also a type of signage. It means a sign:

(a) that indicates:

  (i) the name of the person or business, and

  (ii) the nature of the business carried on by the person at the premises or place at which the sign is displayed, and

(b) that may include the address of the premises or place and a logo or other symbol that identifies the business, but that does not contain any advertising relating to a person who does not carry on business at the premises or place.

**Permissibility**

In the Land Use Table of the BLEP 2012, all types of signage are permitted with consent in all of the Business zones (B1, B2, B4 and B6). Building identification signs and business identification signs are permitted with consent in all the BLEP 2012 zones, including the Residential zone, but excluding the SP2 Infrastructure zone.

**Exempt Development**

Specific categories of signage and advertising may not require development consent subject to satisfying the specified criteria. This form of development is referred to as Exempt Development.

Council's Exempt Development provisions are set out in Clause 3.1 and Schedule 2 of the BLEP 2012. The following categories of signage and advertising are included in Schedule 2:

- Business identification signs.
- Real estate signs (advertising premises/land for sale or rent).
- Existing under-awning signs.
- Non-illuminated signs behind glass frontage of shops.
- Temporary signs.
- Top hamper signs (non-illuminated).

The State Government's Exempt Development provisions are provided within State Environmental Planning Policy (Exempt and Complying Development Codes) 2008. Division 2 Advertising and Signage Exempt Development Code provides the requirements for:

- Building identification signs.
- Wall signs.
- Fascia signs.
- Under awning signs.
- Top hamper signs.
- Window signs.
- Replacement of identification signs.
- Internal signs.
- Community notice and public information signs.
- Temporary event signs.
- Real estate signs.
- Election signs.

**State Environmental Planning Policy No. 64 – Advertising and Signage**

SEPP No. 64 is a State Government policy which seeks to ensure that advertising and signage is compatible with the desired amenity and visual character of an area, provides effective communication in suitable locations, and is of high quality design and finish. The SEPP is of

particular relevance to large scale outdoor advertising. Council cannot grant development consent to any applicable signage proposal unless it is satisfied that the proposal is consistent with the provisions of SEPP 64 and the Assessment Criteria contained therein.

**Objectives**

The purpose of this DCP section is to provide additional detailed controls on signage that constitutes development permitted with consent.

The objectives are:

**O1** To ensure that signage enhances the visual presentation, character and heritage of the locality.

**O2** To ensure that signage complements the building to which it is attached and the surroundings.

**O3** To prevent excessive signage and visual clutter.

**O4** To facilitate effective and visually interesting advertising of goods and services.

**O5** To ensure that signage does not adversely affect the safety of motorists and pedestrians.

**O6** To ensure signage is of a high quality design and finish.

**O7** To ensure that signs do not affect the amenity of residents, occupiers etc by way of excessive shadow and night illumination.

**O8** To ensure that signage is consistent with community ethics and values.

**Submission Requirements**

Development Applications for signage and advertising must include:

- Statement of Environmental Effects outlining how the requirements of this policy have been addressed.
- Scale drawings of the proposed signage including a site plan and elevations, which specify the materials, colours and content (i.e. wording and graphics) of the sign, as well as the size and shape of the sign, and details of any reflectivity or lighting of the sign. In some cases, Council may require perspective drawings and/or a photomontage. Coloured photographs and/or drawings may be submitted with a signage application, but only in addition to scale plans and elevations.
- The construction details of the sign including means of attachment to the building, structural support or fixing.
- Details of any existing signs on the building and adjacent buildings which are proposed to be retained.

### 5.6.2 Specific Provisions by Signage Type

*A-Frame Sign*

A sign comprising a signboard or sandwich board displayed on a public footpath.

**P1** The sign shall be licensed by Council if occupying a public footpath or public space. In such a case, the signage will only be permitted to be located on the footpath immediately forward of the premises to which the license has been issued.

**P2** The sign must be a free-standing A-frame with maximum dimensions of 0.9m high and 0.6m wide with no protrusions or sharp corners, and stable.

**P3** The owner must carry public liability insurance of at least 20 million.

**P4** There must be a minimum of 2m clearance to any other fixed objects on the footpath such as poles, litter bins, seats etc, with a 600mm setback from the face of the kerb.

**P5** The business and proprietor's name is to be clearly identified on the sign.

*Fascia Sign*

A sign attached to the fascia or return of an awning.

**P6** The sign does not project above or below the fascia or return end of the awning to which it is attached.

**P7** The sign does not extend more than 300mm from the fascia or return end of the awning.

*Flush Wall Sign*

A sign attached to, or painted on, the wall of a building (other than the transom of a doorway or display window) and not projecting more than 300mm from the wall.

**P8** There shall be only one sign per building facade for each occupancy of the premises.

**P9** The sign is not to occupy more than 20% of the area of the wall.

**P10** The sign shall not project above or beyond the wall to which it is attached.

*Pole or Pylon Sign*

A sign erected on a pole or pylon independent of any building or other structure.

**P11** The sign shall have a maximum area of 8 sqm, maximum height of 5m above natural ground level except where special circumstances exist.

**P12** The sign shall have a minimum height above ground level of 2.6m where there would be pedestrian movement beneath.

**P13** Where more than one pole or pylon sign is provided, each should have the same setback and be of uniform design and spacing.

**P14** The sign should not obscure or detract from any landscaped area provided.

*Projecting Wall Sign*

A sign attached to the wall of a building (other than the transom of a doorway or display window) and projecting horizontally more than 300mm.

**P15** The sign shall not exceed 1.5m in height and 0.5m in width/projection.

**P16** The sign shall be erected at right angles to the building.

**P17** The sign shall be erected horizontal to the ground and provide at least 2.6m clearance from the ground.

*School Sign*

A sign located within the boundaries of an educational establishment.

**P18** The sign shall not be greater than 4 sqm in area.

**P19** The sign shall not be more than 3m in height from ground level to the top of the sign.

**P20** There shall not be more than three signs per premises or establishment.

*Trailer Advertisements*

Advertisements on trailers parked on (or visible from) roads or road related areas.

**P21** A person must not display an advertisement on a trailer parked on a road or road related area.

**P22** A person must not display an advertisement on a trailer parked on land other than a road or road related area, but visible from a road or road related area, except with the consent of the consent authority.

*Note: P21 and P22 do not apply to:*

*(a) An advertisement that is ancillary to the dominant purpose of the trailer, or*

*(b) An advertisement on a trailer parked by or on behalf of a public authority in the exercise of its functions.*

*Top Hamper Sign*

A sign attached to the transom of a doorway or display window of a building.

**P23** The sign is not to extend more than 200mm beyond any building alignment.

**P24** The sign is not to extend below the head of the doorway or window to which it is attached.

*Under Awning Sign*

A sign attached to the underside of an awning (other than the fascia or return end).

The sign is not to exceed 2.5m in length and 0.7m between the underside of the sign and the underside of the awning.

**P25** The sign is to be erected at right angles to the building.

**P26** The sign is to be erected horizontal to the ground and provide a clearance of at least 2.6m from the ground.

**P27** The sign is not to project beyond the awning.

**P28** The sign is to be securely fixed by metal supports and fixings.

**P29** The sign shall be not closer than 3m from any other under-awning sign.

**P30** The sign shall be not closer than 600mm to the kerb.

**P31** The sign may be internally illuminated.

*Window Sign*

A sign attached to, or displayed on, the window to a shop, office or business premises.

**P32** The sign shall not cover more than 50% of the window area in the interests of safety, surveillance and visual amenity.

*Signage Panel*

Any advertising structure, other than those described below, including a hoarding or bulletin board.

**P33** The sign shall have a maximum area of 12 sqm.

**P34** There shall be only one sign per building facade.

**P35** The sign shall not extend laterally beyond the wall.

**P36** The sign shall not project above the top of a wall.

**P37** The sign should not obscure or cover any window or architectural feature.

**P38** The internal illumination of large panel signs is generally discouraged as such signs contribute to visual clutter and conflict with street lighting and traffic signals. Real

*Real Estate Sign*

A sign which contains a notice that the place or premises is for sale or letting together with particulars of the sale or letting.

**P39** A real estate sign in respect of residential premises relating to a letting, sale by private treaty or sale by auction, shall not exceed 2.5 sqm in area.

**P40** A real estate sign in respect of commercial or industrial premises, shall not exceed 3.5 sqm in area.

**P41** The sign shall not be displayed for more than seven days after the commencement of the letting or completion of the sale of the premises or place to which the sign relates and shall not be displayed for not more than 40 days in total.

*Temporary Sign*

A sign of a temporary nature which announces any local event of a religious, educational, cultural, social or recreational character or relates to any temporary matter in connection with such an event.

**P42** The sign does not include advertising of a commercial nature (except for the name of an event's sponsor).

**P43** The sign is not a fly poster or an A-frame sign on a public footpath.

**P44** The sign is not displayed earlier than 28 days before the day on which the event is to take place and is removed within seven days after the event.

### 5.6.3 Signage in All Areas

This section applies to all signage in all areas and the provisions are in addition to the particular controls contained within other parts of the BDCP.

*Inappropriate Signage Types and Maintenance Provisions*

**P1** Council generally does not support the following types of signage:

- Roof signs.
- Above awning signs.

- Signage on awning extensions.
- Signage on window blinds or shutters.
- Fly or bill posters on public property.
- Large advertising balloons.
- Flashing, moving or running signs.
- Advertising on parked vehicles, trailers, shipping containers, whether or not registered, where the principal purpose is for advertising.
- Corporate colour schemes, comprising the painting of all, or large parts, of the building's exterior, as such schemes generally obscure architectural features of the building.
- Signage with multiple contrasting colours or rainbow colours.

**P2** Signage should be of limited contrasting colours and proportional to the building and awning.




Signage text should be of limited contrasting colours and proportional to the building and the awning.



Signs with multiple contrasting colours or rainbow colours are discouraged.




Signs with multiple contrasting colours, text not proportional to the building and permanent above awning signs are not permitted.

**P3** New signage schemes should be taken as an opportunity to remove or replace earlier inappropriate signage types. In all cases, new signage will be considered on the basis of its cumulative impact upon the visual presentation of a building, having regard to any existing signage which is proposed to be retained.

**P4** Council discourages signage prone to deterioration in appearance and may order removal of redundant, unsightly, dilapidated or objectionable signage.

**P5** Council may require a provision for maintenance of signage and discourages signage on common boundaries where maintenance difficulties could occur.

*Traffic and Pedestrian Safety*

**P6** Council discourages signage that could cause distraction to motorists in close proximity to traffic lights, pedestrian crossings, etc. Signage that uses digital and LED technology also falls within this category. Moving, flashing or running light signage is not permitted.

**P7** Signs facing roads with high traffic volumes, traffic lights or major intersections may be referred to the NSW Roads and Maritime Services (RMS) for comment. Advertising signs greater than 20 sqm in area and within 250 metres of a classified road will be referred to the RMS for concurrence prior to a decision being made.

*Illumination and Electrical Wiring*

**P8** The glare and/or light spillage from illuminated signage shall not cause a nuisance to adjoining and surrounding residents.

**P9** Electrical wiring to illuminated signage or spotlights is to be concealed in the interests of safety and visual appearance.

*Signage Content*

**P10** The content of signage is to generally relate to goods and services available on the premises.

**P11** Large scale advertising (i.e. other than a building/business identification sign) on classified roads such as Parramatta Road and Liverpool Road contrary to this requirement will be considered on its merits, and may also be subject to SEPP No. 64.

*English and Foreign Language Text*

**P12** Written text upon signage is to be predominately in English. Foreign language text may be permitted where an English translation is provided, and where the foreign language text is provided in smaller lettering or characters.

*Signs on Council Property*

**P13** In considering applications for signage in association with public facilities (such as seating, telephone booths, waste bins or bus shelters), attention will be given to the appropriate placement of such signs. The specific location, design and maintenance requirements should form part of a formal agreement, and the signage would be subject to a Development Application.

*Signage Design Approach*

**P14** Signage for large commercial developments and those that contain multiple tenancies should be the subject of a coordinated signage scheme as part of the overall development.

**P15** Signage for new developments should be incorporated in the architecture of the building or site and approved as part of the initial development approval.

**P16** The proportions of signs should relate to major architectural elements of the building, including window heads, sills, etc.

### 5.6.4 Additional Signage Controls by Zone Type

**Objectives**

**O1** To provide criteria for the management of signage in relevant zones.

**O2** To minimise the impact of signage on residential uses in the vicinity.

**Provisions**

*Signage in a Residential Zone and Associated with a Home Occupation, Home Business or Home Industry*

**P1** A business identification sign must be associated with a permitted home occupation, home business or home industry.

**P2** A maximum of one business identification sign or building identification sign is permitted per dwelling house.

**P3** A business identification sign or building identification sign for a dwelling house is to be located wholly within the property.

**P4** Signage associated with dwelling houses is not to exceed 0.3 sqm in area.

**P5** Flush wall signs affixed to the dwelling house are generally preferred. In special circumstances, consideration may be given to a sign on the fence fronting a street, or a free standing sign within the yard having a maximum height of 1.5 metres.

**P6** Such signs should be located unobtrusively, so as to appear an integral part of the building or landscaping.

**P7** Generally, illuminated signs are not permitted. Standard “light boxes” or “cubes” are permitted to identify health care professionals located in health consulting rooms.

**P8** Signage will generally not be permitted in respect to a home occupation, home business or home industry operating from a residential flat building, multi dwelling housing or shop top housing development as there is greater potential for visual clutter on account of the number of occupancies upon one site.

*Signage in a Residential Zone and Associated with a Commercial Use*

**P9** A maximum of two signs, being building identification sign and/or business identification signs per development are permitted.

**P10** The sign is to be located wholly within the property, and should appear as an integral part of the building or landscaping.

**P11** Signage types in Residential zones will generally be limited to the following:

- Under awning sign.
- Fascia sign.
- Flush wall sign.
- Top hamper sign.
- Window sign.

**P12** Illuminated signs are permitted provided these do not adversely impact on residential land uses in the vicinity.

**P13** Signs for non-residential activities may be required to comply with other requirements of this DCP section.

*Signage in the B4 Mixed Use Zone (Burwood Town Centre and Strathfield Town Centre) and in the B1 Neighbourhood Centre Zone*

**P14** Signs above awning level (or 2.5m where there is no awning) will not be permitted.

*Signs in the B2 Local Centre Zone (Enfield East and West, and Georges River Road Croydon Park), in the B6 Enterprise Corridor Zone (Parramatta Road) and in the IN2 Light Industrial Zone*

**P15** Where a building is located on the street alignment, there shall be no more than three signs per frontage to the ground level façade, and no more than one sign per frontage to the upper level façade.

**P16** Where a building is setback from the street alignment, there shall be no more than three signs per frontage.

### 5.6.5 Signs on, or in the Vicinity of, Heritage Properties

The provisions of the BLEP 2012 should be consulted for provisions relating to heritage properties.

Buildings or sites may be listed as heritage items either individually or as part of a group or a conservation area. There are a number of heritage items and heritage conservation areas within the Burwood LGA recognised by the community as having heritage significance. Any development, including signage, should preserve and enhance the character of these areas.

In general, signage other than exempt development, business identification signs and building identification signage is prohibited in heritage items and conservation areas.

**Provisions**

**P1** Signage should never dominate the architectural features of the building. Advertising should preferably be placed in locations on the building or item, which would traditionally have been used as advertising areas. Opportunities for advertising therefore, may be somewhat limited.

*Traditional Signage Opportunities*

**P2** Generally, sign panels can be determined by dividing a building into a grid and identifying locations on:

- A solid parapet above a cornice.
- The horizontal panel below a cornice.
- Verandah or awning fascia.
- Notice boards or plaques on ground floor piers/beside entrance doors.
- Small signs on individual architectural elements such as rendered blocks.
- Side walls/party walls able to be viewed above adjacent buildings.




**Figure 98. Traditional Shop Signage Example**

*Opportunities for Modern Signage*

**P3** Modern signs can, at times, also be accommodated as follows:

- Under awning signs.
- Window signs.
- Low level sign (below ground floor window sill level).

*Guidelines*

**P4** The following additional matters should be taken into consideration in heritage areas:

(a) As the external colours applied in different historical periods varied and were more limited in range than those available today, it is wise to research appropriate colour ranges for buildings in heritage areas. Generally, however, the following muted colours are suggested dark green, maroon, brown, terracotta, charcoal, etc. highlighted with creams, pinks, ochres and earth tones.

(b) Heritage lettering styles may involve shaded letters, the mixing of styles and letters and ornamental scrolls as relevant to the period of the building.

**Advisory Note:**
These controls are in addition to the provisions under the heritage sections.

## 5.7 Sex Services Premises

### Introduction

The BLEP 2012 defines sex services premises as meaning a brothel, and sex services as sexual acts or services in exchange for payment.

Sex services premises are permitted with Council's consent in the B6 Enterprise corridor zone in the BLEP 2012. The land use is not permitted in any other zone in the Burwood LGA.

Where a Development Application if made for sex services premises, the provisions of the BLEP 2012 require Council to consider the impact on specific adjoining land uses and in particular on any place likely to be regularly frequented by children.

Council will only consider applications for sex services premises where they comply with the BLEP 2012, the additional requirements of this DCP section, and after considering the circumstances of the case, including any public submissions received.

**Advisory Note:**
Home occupation (sex services), where sex services are provided in a dwelling by no more than two permanent residents, is a separate definition in the BLEP 2012. This land use is prohibited in all zones in the Burwood LGA.

### Objectives

**O1** To provide more certainty in the development assessment process and assist the community and applicants to understand Council's requirements relating to sex services premises.

**O2** To specify additional planning requirements that will be used by Council to appropriately regulate and control sex services premises so that they do not cause offence in the wider community or result in adverse environment impacts.

**O3** To ensure that sex services premises are operated in accordance with acceptable health and building standards.

### Submitting a Development Application

Because of the often contentious impacts of sex services premises, the following steps should be followed when submitting a Development Application.

1. Discussion should be held with officers of Council's Building and Development section about the application before submitting it and consideration given to any suggestions made by Council staff.

2. All applications for premises to be used as a brothel, including change of use of an existing building to sex services premise, are to include the following documentation:

    - Location plan drawn to scale showing the proximity of the subject site to any residential property, place of public worship, child care centre, community facility, hospital, school, park, or any other place regularly frequented by children (includes any such uses in adjoining Local Government Areas). The windows and doors of these land uses in relation to the proposed brothel must be indicated. The location plan should also show any other sex services premises or licensed premises in the vicinity.
    - A floor(s) layout plan drawn to scale showing room layout and dimensions, partitioning, location of windows and doors including all entrances and exits from the building. Any proposed internal or external alterations to the premises are to

be clearly indicated on the plan. The proposed use of each room is to be nominated to specifically identify all rooms proposed to be used for the conduct of acts of prostitution.

- A site plan indicating on-site parking, means of pedestrian access, and details of external lighting.

An Statement of Environmental Effects which provides:

- details of existing uses on adjoining properties and any other uses established on the subject property.
- comprehensive description of the proposed development, anticipated impact and measures to ameliorate those impacts.

A Management Plan which provides:

- details about the operating business, including names and contact numbers. procedure for dealing with complaints about operational matters.
- operational details including number of staff, hours and days of operation, including maximum number of staff on site at any one time.
- proposed security measures including handling of money.
- proposed health management procedures including cleaning and waste management.

**Notification of Applications**

All applications for sex services premises will be notified in accordance with the requirements of this DCP as specified in Part 7.

Applications for sex services premises also will be referred to the NSW Police for comment prior to determination.

**Provisions**

*Location*

**P1** Sex services premises must not breach the following minimum distances (measured to the entrance to the premises used by clients):

- Within 200m walking distance of any school, child care centre, community facility, or place of public worship located within the Burwood LGA or an adjoining LGA.
- Within a 50m radius (measured from the property boundary) of any other Sex service premises or Restricted premises, regardless of whether it is located within the Burwood LGA or an adjoining LGA.
- Within 100m radius of any pub or hotel.

**P2** The operation of a brothel inside the sex services premises must not be visible from any lawful land use located within an adjoining residential zone whether located within the Burwood LGA or an adjoining LGA:

**P3** Sex services premises should be located where access is provided from Parramatta Road. Access via side streets is not acceptable.

*Layout of Premises*

**P4** Premises must be designed so that there is only one visible entrance to the premises. As stated above, it must be from the Parramatta Road frontage of the property.

**P5** The entrance must be illuminated and access to the premises provided so that people visiting the brothel do not have to wait on the footpath. A waiting room or area within the premises should be provided for this purpose if necessary.

*Parking and Access*

**P6** Parking for sex services premises is to be provided in accordance with Section 5.7.

**P7** Parking areas are to be well lit and sign-posted.

**P8** If parking (as required by this DCP) for the premises is proposed to be provided in the rear of a property, including via access from a rear lane, the application must demonstrate adequate and safe access to the Parramatta Road pedestrian entry of the premises without any impact on adjoining land uses, in particular those in residential zones.

*Hours of Operation*

**P9** No specific standards are proposed in relation to the hours of operation. However, Council will exercise its discretion in relation to permitted hours of operation of sex services premises in the circumstances of the case taking into consideration the nature of adjoining land uses, hours of operation/use of those premises and possible conflicts with such uses.

*Scale of Operation*

**P10** Council will consider the appropriateness of the proposed scale of operation relative to the location of the premises, the size of the land parcel and the nature and scale of any likely impacts on surrounding development. Generally, the floor area of the sex services premises is not to exceed 200 sq.

*Noise*

**P11** The use of the sex services premises shall not give rise to:

- Transmission of vibration to any place of different occupancy, or
- A sound level at any point on the boundary of a site any greater than the background levels specified in Australian Standard 1055, “Acoustic – Description and Measurement of Environmental Noise”, or
- An “offensive noise” as defined in the Protection of the Environment Operations Act, 1997.

*Signage*

**P12** Council aims to ensure that advertising of premises is discreet and does not cause offence to the general public and the following requirements apply:

- Only one discreetly located external sign will be permitted on premises having a maximum area of 0.5 sqm. Wording must be limited to the name of the business operated and the address. Signs may not display words or images that Council considers to be sexually explicit, provocative, or otherwise offensive.
- A clearly identifiable street number must be displayed.

- Signs may be externally lit by spotlights only. Internally illuminated signs are not permitted.
- No “chain” bulb or “flashing sign” type lighting is permitted.

**Advisory Note:**
Advertising premises specifically for the purposes of prostitution is an offence under the Summary Offences Act 1988.

*Health Requirements*

**P13** Council aims to:

- Encourage sex services premises to operate in a manner which will not assist in the spreading of communicable diseases.
- Promote the education of sex industry workers and their clients to minimise the risk of contracting sexually transmitted diseases.
- To assist in reasonable working conditions being provided for sex industry workers.
- All sex services premises must be fitted with the necessary services and facilities required for Class 5 buildings (an office building used for professional or commercial purposes) under the Building Code of Australia.
- Full details of Council’s health and building requirements are available from Council. These requirements must be complied with and will be included as conditions of development consent.

## 5.8 Transport and Parking for Other Development

### Strategic Approach

Most of the transport and parking requirements for "other" developments covered by Part 5 of this DCP are already specified in Sections 3.7 (Centres and Corridors) or 4.6 (Residential Areas.) For ease of reference the specific land uses/developments dealt with in Part 5 are repeated in the following table with a link back to more detailed information in other Tables.

In addition, the transport and parking requirements for the five land uses/developments permitted only in the IN2 Light Industrial, RE1 Public Recreation and RE2 Private Recreation zones (that are likely to generate travel and parking demand if implemented) are also outlined in this section. These are:

- Boat building and repair facilities
- Depots
- Research stations
- Environmental facilities
- Recreation facilities (outdoor)

### Objectives

**O1** Ensure the appropriate provision of secure and accessible parking supply to meet the needs of users in the residential zones.

**O2** Encourage increased use of public transport, walking and cycling for trips generated by new development.

**O3** Support Council's on-street parking strategy in the Burwood Public Parking Strategy 2010 and its successors.

**O4** Require a broader assessment of transport, traffic and parking factors in the Development Application process.

**O5** Ensure the design of parking areas of developments meets appropriate criteria for vehicular and pedestrian safety and personal security, and the needs of people with disabilities, and provides appropriate facilities for cyclists and pedestrians.

**O6** Encourage the provision of parking supply that contributes to the enhancement of development on sites and the quality of the streetscape.

**O7** Manage the impacts of impervious surfaces and the excavation of basements to avoid site instability and the interruption to water/ground water flows, and provide greater opportunity for deep soil planting.

### Provisions

**P1** **Basic parking requirement:** Development must provide parking spaces on site for each proposed land use in accordance with the Table 5. All parking generated by the development is to be provided on site, including any visitors parking. Contributions in lieu of on site provision of parking will not be accepted.

**P2 Compliance with Australian Standards:** The design and construction of on-site:

- Parking areas and parking spaces
- Service and loading/unloading areas
- Access to, from and within these facilities

are to comply with the applicable Australian Standards. These Standards cover a range of technical requirements including design elements, dimensions, gradients, headroom, curves, delivery and service areas, and special requirements for people with disabilities.

The applicable standards are the most recent versions (at the time of the application) of:

- AS 2890.1 Part 1: Off-street car parking.
- AS 2890.2 Part 2: Off-street commercial vehicle facilities.
- AS 2890.3 Part 3: Bicycle parking facilities.
- AS 2890.5 Part 5: On-street parking.
- AS 2890.6 Part 6: Off-street parking for people with disabilities.
- AS 1428.1: Design for access and mobility.
- AS 1735.12: Lifts, escalators and moving walks - Facilities for persons with disabilities.

**P3 Vehicular Access and Footpath Crossings**

- Vehicular access for development must be provided from lanes and minor or secondary streets where available, rather than major streets or Classified Roads.
- Vehicular access and footpath crossings must be minimised where provided the safety of pedestrians and cyclists must be maintained and there should be no more impacts on bus operations.
- Vehicular access must have a nominal width of 2.7 metres over the footpath, and be perpendicular to the kerb alignment.

**P4 Automated or Mechanical Car Stacking**

Installation of automated or mechanical car parking systems to meet car parking requirements for developments is not supported. Experience with and observation of these systems indicates significant potential for adverse impacts arising from slow operation causing vehicle queuing, vehicle size constraints that are not appropriate in Australia, and unreliability in cases of mechanical, hydraulic or electrical failure. Provision of free-standing spaces accessed by ramps is preferred. If restricted site size limits provision of traditional on-site parking, consideration should be given to consolidation of lots to create a larger development site.

**P5 Plans and reports on transport, traffic and parking to support Development Applications:** To provide adequate information for the assessment of proposals, Development Applications are to be supported by one of the following reports, depending on the scale and impact of the proposal.

*1. Transport, Traffic and Parking Impact Report and Management Plans*

Depending on the type and scale of development, Council at its discretion may require a Development Application to be accompanied by a Transport, Traffic and Parking Impact

| |
|---|
| Report and Management Plan prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters:<br>▪ The proposed development and its suitability in terms of transport, traffic and parking impact<br>▪ The existing parking and traffic conditions<br>▪ The proposed traffic, parking and vehicle access arrangements<br>▪ The accessibility of public transport services, and walking and cycling facilities<br>▪ The impact of the development on the surrounding street network and intended measures to ameliorate or manage that impact<br>▪ The impact of the proposed development on the efficient and safe operation of bus services and passenger access<br>▪ The design and compliance with the applicable Australian Standards in P2 above<br>▪ Pedestrian and cyclist safety, personal security and safe access from parking areas to activities on the site<br>▪ Signage and visual accessibility during day and night periods<br>▪ Provision for loading, unloading and service vehicles<br>▪ Provision for parking of bicycles and facilities for use of cyclists<br>▪ A management plan covering management of traffic impacts and intended measures to encourage public transport use, walking and cycling, and to manage travel demand<br>▪ Consistency with general aims and zone objectives of the BLEP 2012<br>▪ Consistency with the aims and objectives of this BDCP set out in Section 2<br>▪ Compliance with the applicable requirements of this BDCP Part. |
| 2. *Transport, Traffic and Parking Impact Report*<br><br>Alternatively, depending on the type and scale of development, Council at its discretion may require a Development Application to be accompanied by a Transport, Traffic and<br><br>Parking Impact Report prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters:<br>▪ The proposed development<br>▪ The existing parking and traffic conditions and public transport conditions<br>▪ The proposed traffic, parking and access arrangements<br>▪ The impact of the development on traffic conditions in the surrounding street network and intended measures to ameliorate or manage that impact<br>▪ The intended measures to encourage public transport use, walking and cycling, and reduce the use of private motor cars<br>▪ Compliance with the applicable requirements of this BDCP<br>▪ Consistency with the aims and objectives of this BDCP set out in Section 2. |

## P6 Cycling

Increased use of cycle travel to and from developments can help reduce reliance on private cars and improve public health. Burwood Council and the Inner West Sub-region have suitable terrain and the network of local and regional cycle paths is under continuous improvement. The following requirements apply:

- Standards for the number of bicycle parking facilities are provided in Cycling Aspects of Austroads Guides (Austroads and Standards Australia 1999) and Planning Guidelines for Walking and Cycling (Department of Planning and the Roads and Traffic Authority 2004), developments must demonstrate compliance with the requirements of either of these publications.
- Design of bicycle parking facilities (racks and lockers) must be in accordance with the provisions of Australian Standard 2890.3 – Parking Facilities or Cycling Aspects of Austroads Guides.

- Bicycle parking devices must meet the following general requirements:

- Enable wheels and frame to be locked to the device without damaging the vehicle.
- Be well located and lit for security purposes.
- Be in a convenient and accessible location outside pedestrian and vehicle movement paths.
- Be protected from motor vehicle movements and useable without damaging other bicycles.
- Be protected from the weather.
- Designed to fit in with the development.

**Table 5. Car Parking Rates for Other Development**

**Applies to zones:**

IN2 Light Industrial

RE1 Public Recreation

RE2 Private Recreation

| **Land Use** | **Car Parking Rates Applying Where The Land Use Is Permitted In The Zones**<br>**General**<br>▪ The stated parking provision rates are the minimum requirement, except where indicated otherwise for a specific land use.<br>▪ Calculation of the number of parking spaces required for a development is to be determined by rounding up to the nearest whole number where the decimal point is 0.5 and above, or rounded down to the nearest whole number where the decimal point is below 0.5.<br>▪ All parking is to be provided on the site of the development except where indicated otherwise for a specific land use.<br>▪ In all cases the square metre areas in the Table refer to gross floor area as defined in the BLEP 2012. | **Notes and other requirements**<br>**NB:** All parking for all developments must be provided on site. |
|---|---|---|
| **Commercial Premises Category and Related** | | |
| **Retail Premises Subgroup and Related** | | |
| Neighbourhood shops | In the IN2 Light Industrial zone, one space per 50 square metres. | |
| **Community Category and Related** | | |
| Child care centres | ▪ See Table 2. | |
| Recreation facilities (outdoor) | ▪ As determined case-by-case on the basis of a Transport, Traffic and Parking Impact Report and Management Plan prepared by the applicant. | |
| Environmental facilities | ▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, prepared by the applicant at Council's direction. | |

| | | |
|---|---|---|
| **Tourist and Visitor Accommodation Category** | | |
| Backpackers' accommodation,<br>Bed and breakfast accommodation,<br>Boarding houses | ▪ See Table 2. | |
| **Miscellaneous** | | |
| Sex services premises | See Table 2. | |
| Boat building and repair facilities | As for light industries in Table 2. | |
| Depots | As for light industries in Table 2. | |
| Research stations | ▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, prepared by the applicant at Council's direction. | |

## 5.9 Exempt and Complying Development

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (the Codes SEPP) specifies exempt development that has State-wide application under that Policy. Exempt development may be carried out without the need for development consent under the EP& A Act.

The Codes SEPP also specifies complying development that has State-wide application, as well as conditions that are applicable to complying development under the SEPP. Complying development is development, or a class of development, that can be certified as approved if it complies with specified predetermined development standards.

The Standard Instrument LEP allows Schedules 2 and 3 to contain additional exempt development and complying development respectively that are not specified in the Codes SEPP. It also allows for other conditions to be specified to apply to complying development certificates.

The BLEP 2012 includes in Schedule 2 certain advertising and advertising structures as additional exempt development. There is no additional complying development specified in Schedule 3 of the BLEP 2012, nor are any additional conditions included in Schedule 3 to be attached to complying development certificates.

The BDCP does not impact on Exempt and complying development

Should a type of development not be listed as either Exempt or Complying Development in the Codes SEPP or in Schedule 2 to the BLEP 2012, or if the proposed development does not meet the relevant standards or criteria the development requires a Development Application to be lodged with Council. The Development Application may be determined by Council with the granting of consent or consent may be refused.

## 5.10 Street Addressing and Numbering

### Introduction

Council is responsible under NSW law to regulate the allocation of street address numbers pursuant to Section 124 (Order No.8) of the *Local Government Act 1993*.

Council allocates street address numbers to new lots created by way of subdivision under Torrens Title, Company Title, Strata Title or Community Title. Council also considers requests for change to existing street number allocations.

Street addressing and numbering is essential to the community for delivery of services and public safety, particularly when it comes to emergency response times. Governments rely on it for infrastructure delivery that serves the economy and improves people's lives.

The following public interest objectives provide the main guidance in Council's street addressing and numbering practices:

- clarity of numbering for emergency services, postage, public safety and utility authorities to locate and identify premises
- the consistency of the numbering system
- clarity of numbering for the public to locate and identify premises.

### Provisions

**P1** Council's street numbering allocation process will be consistent with the NSW Addressing User Manual and the Australian Standard - AS/NZS 4819:2003 - on urban and rural addressing.

**P2** All properties in a street will be allocated a unique street number.

**P3** Street numbering will be sequential within a street.

**P4** In a Strata Title subdivision, unit numbers should, for clarity, match the new lot number in the relevant strata plan.

**P5** Council will consider a request to alter an address/street number of a property if there are clear difficulties associated with its identification (i.e. if the access to the front door of a house on a corner lot faces the other street or if a property has multiple street frontages).

**P6** Requests to alter an address/street number of a property that is made solely for cultural or religious reasons are not supported. Council will only agree to non-standard numbering where it can be demonstrated that the above-mentioned public interest objectives and the system in the NSW Addressing User Manual are not compromised.

**P7** Buyers of property should be aware that, when purchasing property Council will not place any weight cultural or religious considerations in determining any request to alter street numbering.

## 5.11 Public Art in Private Developments

Public art when integrated into development can enhance a sense of place and activate public spaces. The provision of well-considered and designed public art in new developments is an opportunity to celebrate the cultural identity and diversity of Burwood, as well as recognise and promote the indigenous identity of the place.

### Objectives

- Enhance the sense of place through the provision of public art.
- Ensure that public art is an integrated and cohesive part of new development and provides opportunities for creativity in built form outcomes
- Recognise and promote cultural diversity through creative and innovative and interpretative art projects
- Celebrate the culture of the Wangal People of the Eora Nation, the Traditional Custodians of the Land

### Provisions

**P1** Public art is required to be provided for major developments in the following locations, where the proposed development has a Capital Investment Value (CIV) of $10,000,000 or more:
- Burwood Town Centre (as identified by Burwood LEP 2012)
- Development fronting Parramatta Road
- Strathfield Town Centre (zoned B4)
- Enfield Centre (zoned B2)
- Croydon Centre (zoned B2)
- Croydon Park Centre (zoned B1)

**P2** Public art is required to be provided for major developments outside those areas listed in P1 above, where the proposed development has a Capital Improvement Value (CIV) of $20,000,000 or more.

**P3** A minimum of 1% of the total cost of the development is to be allocated to the public art budget.

**P4** The development application must be accompanied by a Public Art Plan, which is prepared in accordance with the Burwood Public Art Guidelines for Developers.

**P5** The public art is prepared and undertaken in accordance with the Burwood Public Art Guidelines for Developers.

**P6** The public art is installed on the development site or in the immediate vicinity of the site.

**P7** The public art is located so that it is not unreasonably inaccessible or obscured by a building element which makes it impossible to see in full by the building occupants and the general public.